State Load Dispatch Centre vs U.P. Electricity Regulatory ... on 5 November, 2015

IA No.403/15

IN THE APPELLATE TRIBUNAL FOR ELECTRICITY
AT NEW DELHI

(APPELLATE JURISDICTION)

I.A. NO. 403 OF 2015
IN
APPEAL NO.251 OF 2015

Dated: 5th November, 2015

Present: Hon'ble Mrs. Justice Ranjana P. Desai, Chairperson
Hon'ble Mr. I.J. Kapoor, Technical Member.

In the matter of:-

STATE LOAD DISPATCH CENTRE,)
Uttar Pradesh, through its Director -)
U.P. Power Transmission)
Corporation Limited, 5th Floor,)
Shakti Bhawan, 14-Ashok Marg,)
Lucknow - 226 001.) ... Applicant

AND

1. U.P. ELECTRICITY)
REGULATORY COMMISSION,)
through its Secretary,)
2nd Floor, Kisan Mandi Bhawan,)
Vibhuti Khand, Gomti Nagar,)
Lucknow, Uttar Pradesh 226 010.)

2. NOIDA POWER COMPANY)
LIMITED, through its Managing)
Director and CEO, Commercial)
Complex, H Block, Alpha II)
Sector, Greater Noida, Uttar)
Pradesh - 201 310.)

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3. U.P. POWER CORPORATION              )
   LIMITED, through its Managing       )
   Director, 14, Ashok Marg, Shakti    )
   Bhawan, Lucknow, Uttar Pradesh      )
   - 226 001.                          )

4. U.P. POWER TRANSMISSION             )
   CORPORATION          LIMITED,       )
   through its Managing Director,      )
   14, Ashok Marg, Shakti Bhawan,      )
   Lucknow, Uttar Pradesh - 226        )
   001.                                )   ...     Respondents

Counsel for the Appellant(s)     : Mr. Rahul Srivastava

Counsel for the Respondent(s)    : Mr. C.K. Rai
                                   Mr. Paramhans for R-1.

                                   Mr. Amit Kapur
                                   Mr. Vishal Anand for R-3

                                   Mr. M.G. Ramachandran,
                                   Mr. Vishal Gupta
                                   Mr. Kumar Mihir for R-6.

                                 ORDER
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1. On 28/10/2015, when application being I.A. No.379 of 2015 in Appeal No.231 of 2015 was being heard by us, Mr. Rahul Srivastava, who is appearing for the Applicant in the present application submitted that in the present appeal as well as Appeal No.231 of 2015, the same orders are under challenge. In the interim applications, the applicants have sought stay of the said impugned orders. Counsel submitted that since similar issues are involved in Appeal No.231 of 2015 and Appeal No.251 of 2015, the present application being I.A. No.403 of 2015 be taken up for hearing along with I.A. No.379 of 2015. Accordingly, we heard Mr. Rahul Srivastava, learned counsel for the Applicant. Counsel submitted that he adopts the arguments of Mr. Amit Kapur, learned counsel for the Applicant in I.A. No.379 of 2015 in Appeal No.231 of 2015.

2. Today, by a reasoned order, we have dismissed I.A. No.379 of 2015 in Appeal No.231 of 2015.

3. For the reasons stated in the said order in I.A. No.379 of 2015 in Appeal No.231 of 2015, the present application is dismissed.

4. Office to tag this appeal to Appeal No.231 of 2015.

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   I.J. Kapoor                    Justice Ranjana P. Desai
[Technical Member]                     [Chairperson]
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